

NEW OR TRANSFER LIQUOR LICENSE OR PERMIT APPLICATION

FOR LIQUOR DIVISION USE ONLY

Customer #:

Trf from:

Reviewer:

Initials

Date

Agent:

Mgr:

To be completed by City / Town / County ClerkLocal License #: 51

License

Fees

Annual Fee: \$ 1,050 . 00

Prorated Fee: \$ _____

Transfer Fee: \$ _____

Publishing Fee: \$ 100 . 00Date filed with clerk: 2 / 14 / 2025

Advertising Dates: (2 Consecutive Weeks Prior to Hearing)

2/27/2025 & 3/6/2025Public Hearing Date: 3 / 10 / 2025Publishing Fee Direct Billed to Applicant: ☐

License Term:

4 / 1 / 2025
Month Day YearThrough 3 / 31 / 2026
Month Day Year**LICENSING AUTHORITY:** Begin publishing promptly. As W.S. 12-4-104(d) specifies: **NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.**Applicant (Business Name): FRONTIER TRAMPOLINE PARK INC.Doing Business As (DBA) / Trade Name: FRONTIER TRAMPOLINE PARKBuilding to be licensed / Building Address: 3501 LINCOLNWAY SUITE B.
(Address Number, and Suite or Unit Number, and Street or Road Name)CHEYENNE WY 82001 LARAMIE
City State Zip CountyLocal Mailing Address: 3501 E. LINCOLNWAY SUITE B.
(Address Number or PO Box, and Suite or Unit Number, and Street or Road Name)CHEYENNE WY 82001 LARAMIE
City State Zip CountyLocal Business Telephone Number: 307-650-5867 Fax Number: _____Business E-Mail Address: FRONTIERTRAMPOLINEPARK@GMAIL.COMBusiness Primary Contact: ASHLEY HODGE
First Name Last Name**FILING FOR**☒ NEW LICENSE☐ TRANSFER OF LOCATION☐ TRANSFER OF OWNERSHIP☐ ASSIGNMENT LETTER MUST BE ATTACHED

FORMERLY HELD BY: _____

FILING IN (CHOOSE ONLY ONE)☒ CITY / TOWN OF: CHEYENNE☐ COUNTY OF: _____**FILING AS (CHOOSE ONLY ONE)**☐ INDIVIDUAL☐ PARTNERSHIP☐ LP☐ LLP☐ LLLP☐ LLC☐ LC☒ CORPORATION (INC)☐ POLITICAL SUBDIVISION☐ ORGANIZATION☐ OTHER _____**TYPE OF LICENSE OR PERMIT (CHOOSE ONLY ONE)**☐ RETAIL LIQUOR LICENSEPRIMARY BUSINESS TYPE
(CHOOSE ONLY ONE)☐ ON-PREMISE BAR☐ OFF-PREMISE PACKAGE STORE☐ ON & OFF PREMISE BAR &
PACKAGE STORE☒ RESTAURANT LIQUOR LICENSE☐ BAR AND GRILL LIQUOR LICENSE☐ RESORT LIQUOR LICENSELIMITED RETAIL LIQUOR LICENSE
(CLUB)☐ VETERANS CLUB☐ FRATERNAL CLUB☐ GOLF CLUB☐ SOCIAL CLUB☐ MICROBREWERY PERMIT☐ WINERY PERMIT☐ MANUFACTURER SATELLITE PERMIT☐ WINERY SATELLITE PERMIT☐ COUNTY MALT BEVERAGE PERMIT☐ SPECIAL MALT BEVERAGE PERMIT**SPECIAL STATUTORY DESIGNATIONS (CHOOSE ONLY ONE)**☐ COMMERCIAL AIRPORT (W.S. 12-4-201(d)(iv))☐ GOLF CLUB (W.S. 12-5-201(f))☐ GUEST RANCH (W.S. 12-5-201(f))☐ RESORT (W.S. 12-4-401(iv) / 12-5-201(f))☐ GOLF CLUB-POLIT. SUBDIVISION (W.S. 12-4-301(e) / 12-5-201(f))☐ Other: _____**OPERATIONAL STATUS** (To Assist the Liquor Division with scheduling inspections (W.S. 12-1-101(a)(xxi) / 12-2-301(c) / 12-4-103(a)(iv)))☒ FULL TIME☐ SEASONAL☐ NON-OPERATIONAL / PARKED

MONTHS OF OPERATION

from JAN to DEC ☒ All Year (Jan-Dec)

DAYS OF WEEK OF OPERATION

from TUES to SUN ☐ Every Day (Mon-Sun)

HOURS OF OPERATION

from 4pm to 8pm ☐ 24 Hours a Day

ALL APPLICANTS MUST COMPLETE QUESTIONS 1- 3**1. BUILDING OWNERSHIP: W.S. 12-4-103(a)(iii)**

Does the Applicant own or lease the licensed building?

- (a) The Applicant **OWNS** the licensed building.
 (b) The Applicant **LEASES** the licensed building.

☐ YES (own)
☒ YES (lease)

If the building is leased, please submit a copy of the lease and indicate:

- (i) Lease term expiration date; located on page 1 paragraph 2A 3/1/2029

Note: The lease term **MUST** continue at least through the term of the liquor license or permit

- (ii) **Sales** provision for alcoholic or malt beverages: located, on page 23 paragraph 1-7

Note: The lease **MUST** contain a provision for **SALE OF ALCOHOLIC or MALT BEVERAGES**.**2. LIQUOR BUSINESS CONTROL: W.S. 12-4-601(b)**

- (a) To operate the liquor business, has the business or license/permit been assigned, leased, transferred or contracted with any other person (entity) to operate and assert total or partial control of the license or permit or the licensed building? ☐ YES ☐ NO

- (b) If the answer was **YES** to 2(a) above, explain fully and submit any documents in connection there within.

3. INTEREST IN LICENSE OR PERMIT: W.S. 12-5-401, 12-5-402, 12-5-403 -

Does any alcohol manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm:

- (a) Hold any interest in the license/permit applied for? ☐ YES ☐ NO
 (b) Furnish by way of loan or any other money or financial assistance for purposes hereof in the business? ☐ YES ☐ NO
 (c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs? ☐ YES ☐ NO
 (d) If the answer was **YES** to any of the above, explain fully and submit any documents in connection there within.

4. RETAIL LIQUOR LICENSE-COUNTY LOCATIONS ONLY: W.S. 12-4-201(f)(ii)Is the licensed building within five (5) miles of an incorporated town or city? ☐ YES ☐ NO**5. RETAIL LIQUOR LICENSE-COMMERCIAL SERVICE AIRPORTS ONLY: W.S. 12-4-201(m)**

- (a) Will food and beverage services be contracted or subcontracted? ☐ YES ☐ NO
 1. If **YES**, is a copy of the food and beverage contract or lease attached? ☐ YES ☐ NO

6. BAR AND GRILL LICENSE OR RESTAURANT LIQUOR LICENSE ONLY: 12-4-413(a) / W.S. 12-4-407(a)Is a copy of the valid food service permit or the approved permit application attached? ☒ YES ☐ NO**7. RESORT LIQUOR LICENSE: W.S. 12-4-401 through W.S. 12-4-403(b)**

Does the resort complex:

- (a) Have an actual valuation of at least one million dollars, or have committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i) ☐ YES ☐ NO
 (b) Include a restaurant and a convention facility; a convention facility that will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii) ☐ YES ☐ NO
 (c) Include motel, hotel or privately owned condominium, town house or home accommodations approved for short term occupancy with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii) ☐ YES ☐ NO
 (d) If no on question (c), have a ski resort facility open to the general public in which has been committed or expended not less than 10 million dollars (\$10,000,000.00)? W.S. 12-4-401(b)(iv) ☐ YES ☐ NO
 (e) Will food and beverage services be contracted or subcontracted? W.S. 12-4-403(b) ☐ YES ☐ NO
 1. If **YES** to (e), is a copy of the food and beverage contract or lease attached? ☐ YES ☐ NO

8. MICROBREWERY PERMIT ONLY: WHOLESALE DISTRIBUTION: W.S. 12-2-201(a)

- (a) Will the microbrewery self-distribute its products or distribute through a licensed wholesaler? ☐ YES ☐ NO

If **YES**, a wholesale malt beverage license from the Liquor Division will be required.

9. LIMITED RETAIL (CLUB) LIQUOR LICENSE:

FRATERNAL CLUBS W.S. 12-1-101(a)(iii)(B)

- (a) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO
- (b) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO

10. LIMITED RETAIL (CLUB) LIQUOR LICENSE:

VETERANS CLUBS W.S. 12-1-101(a)(iii)(A):

- (a) Does the Veteran's organization hold a charter by the Congress of the United States? ☐ YES ☐ NO
- (b) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary? ☐ YES ☐ NO

11. LIMITED RETAIL (CLUB) LIQUOR LICENSE:

GOLF CLUBS W.S. 12-1-101(a)(iii)(D) / W.S. 12-4-301(e):

- (a) Does the golf club have more than fifty (50) bona fide members? ☐ YES ☐ NO
- (b) Does the Applicant, maintain, or operate a bona fide golf course together with a clubhouse? ☐ YES ☐ NO
- (c) Is the Applicant a Political Subdivision of the state that owns, maintains, or operates this golf course? ☐ YES ☐ NO
1. Will food and beverage services be contracted or subcontracted? W.S. 12-4-301(e) ☐ YES ☐ NO
2. If YES, is a copy of the food and beverage contract or lease attached? ☐ YES ☐ NO

12. LIMITED RETAIL (CLUB) LIQUOR LICENSE:

SOCIAL CLUBS W.S. 12-1-101(a)(iii)(E) / W.S. 12-4-301(b):

- (a) Does the club have more than one hundred (100) bona fide members who are residents of the county in which the club is located? ☐ YES ☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state? ☐ YES ☐ NO
- (c) Is the club qualified as a tax-exempt organization under the Internal Revenue Service? ☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year? ☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues? ☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club? ☐ YES ☐ NO
- (g) Is a true copy of the club bylaws attached to this application? ☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License? (Petition(s) Attached) ☐ YES ☐ NO

13. Applicant is Filing As Individual, Partnership, Political Subdivision, Organization or Other:
W.S. 12-4-102(a)(ii) & (iii)

Each individual, partner or officer (as applicable) must complete all of the information below.
(If more information is required, list on a separate piece of paper and attach to this application.)

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip DO NOT LIST PO BOXES	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been convicted within the previous 10 years of:	
					a Felony Violation Relating to Alcoholic Liquor or Malt Beverages?	any Violation Relating to Alcoholic Liquor or Malt Beverages?
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐

14. Applicant is Filing As a Corporation, Limited Company, Limited Liability Company, Limited Liability Partnership or Limited Partnership: W.S. 12-4-102(a)(iv) & (v)

Each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock or ownership of the corporation, limited liability company, limited liability partnership, or limited partnership.

Each Officer, Director or LLC member must complete all of the information below.
(If more information is required, list on a separate piece of paper and attach to this application)

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip <i>DO NOT LIST PO BOXES</i>	Residence Phone Number	No. of Years in Corp or LLC	% of Corporate Stock or Ownership Held	Have you been convicted within the previous 10 years of:	
						a Felony Violation Relating to Alcoholic Liquor or Malt Beverages?	any Violation Relating to Alcoholic Liquor or Malt Beverages?
WYATT BODZAY		CHERRY WOOD LN. CHEYENNE, WY 82009	307-431- 2047	5	75	YES ☐ NO ☒	YES ☐ NO ☒
ASHLEY HODGE		CHERRY WOOD LN. CHEYENNE, WY 82009	307-431- 6241	5	25	YES ☐ NO ☒	YES ☐ NO ☒
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐

REQUIRED ATTACHMENTS:

- ☐ A statement indicating the financial condition and financial stability of the Applicant. W.S. 12-4-102(a)(vi).
- ☐ If transferring a license or permit to another Applicant, attach a form of assignment from the current licensee to the new Applicant authorizing the transfer. W.S. 12-4-601(b).
- ☐ A copy of any lease agreements. W.S. 12-4-103(a)(iii)
- ☐ Bar & Grill and Restaurant liquor license Applicants: attach a copy of the current Food Service Permit or the approved permit application for the Applicant and for the licensed building location. 12-4-413(a) / W.S. 12-4-407(a)
- ☐ If food and beverage services will be contracted or subcontracted attach a copy of the contract or lease agreement W.S. 12-4-201(m) / W.S. 12-4-301(e) / W.S. 12-4-403(b)
- ☐ If filing for a Golf Club or Social Club liquor license attach a copy of the club's bylaws W.S. 12-4-301(c)

OATH OR VERIFICATION

Requires signatures by **ALL** Individuals, **ALL** Partners, **ONE (1)** LLC Member, or **TWO (2)** Corporate Officers or Directors except that if all the stock of the corporation is owned by **ONE (1)** individual then that individual may sign and verify the application upon his oath, or **TWO (2)** Club Officers. W.S. 12-4-102(b)

Under penalty of perjury, and the possible revocation or cancellation of the license, I swear the above stated facts, are true and accurate.

STATE OF WYOMING)
) SS.
COUNTY OF LARAMIE

Signed and sworn to before me on this 14th day of FEBRUARY, 2025 that the facts alleged in the foregoing instrument are true by the following:

- 1) Wyatt Bodzay
(Signature)

Wyatt Bodzay
(Printed Name)

PRESIDENT
Title
- 2) Ashley Hodge
(Signature)

ASHLEY HODGE
(Printed Name)

VICE PRESIDENT
Title
- 3) _____
(Signature)

(Printed Name)

Title
- 4) _____
(Signature)

(Printed Name)

Title
- 5) _____
(Signature)

(Printed Name)

Title

Witness my hand and official seal:

J KING - NOTARY PUBLIC

COUNTY OF LARAMIE

STATE OF WYOMING

MY COMMISSION EXPIRES 02/23/2025

Signature of Notary Public

My commission expires: 02/23/2025

December 1st, 2024

Patrick Collins, Mayor, and City Council Members
City of Cheyenne
2101 O'Neil Avenue
Cheyenne, WY 82001
(307)637-6346

Dear Mayor and City Council Members,

Frontier Trampoline Park is requesting a liquor license. Being a family entertainment business, we would like to be able to fulfill the request from parents for an alcoholic beverage option while they are here. We have taken the necessary steps to meet the requirements for the liquor license and have attached all documents relevant to this letter.

Frontier Trampoline Park opened February 15th, 2020. Just before the height of COVID struck our country, we opened with big aspirations to add Family Fun to the community of Cheyenne. Over the course of the five years, we have had an over pouring number of requests to offer canned beverages for adults while in our establishment.

We are dedicated to conducting our business in full accordance with all applicable state and local regulations. We recognize the significance of responsible alcohol service and will ensure that our staff receive proper training in responsible serving practices.

We are requesting your consideration for a Restaurant Liquor License be approved, to fulfil the parents' request for canned alcohol beverage options while visiting the establishment.

Thank you for considering our application, please do not hesitate to contact me if you require any further information or clarification we look forward to hearing from you!

Sincerely,

Wyatt Bodray
(307)431-2047

Ashley Hodge
(307)431-5241

LEASE AGREEMENT

This Lease Agreement ("Lease") shall be made effective the 22nd day of February 2019 ("Lease Effective Date"), by and between Capital City Properties, LLC, a Wyoming limited liability company ("Landlord"), whose mailing and street address is 1583 Scenic Ridge Dr, Cheyenne WY 82009; and Frontier Trampoline Park Inc, a Wyoming Corporation ("Tenant"), whose mailing and street address is 3244 Campfire Trail, Cheyenne Wyoming 82001.

1. **DESCRIPTION.** The Landlord does hereby lease to Tenant, those certain premises situated in the county of Laramie, State of Wyoming, consisting of approximately 25000+/- square feet ("Leased Square Footage") (using the BOMA standard of measurement measuring from the exterior surface of exterior walls and from the midline of interior demising walls) the "Demised Premises" located at 3501 East Lincolnway, Cheyenne WY, with legal description of LINCOLNWAY SHOPPING CENTER ADDITION, 3RD FILING: LOT 3, BLOCK 1 (Exhibit A) together with nonexclusive rights to the use and enjoyment of the parking lot and other common area facilities on such land (to be shared with the users of the balance of the building if applicable).

2. **TERM.**

a. The lease term will commence on April 1, 2019 and end on March 31, 2029. "Rent Commencement Date" shall be October 1, 2019 or the date Tenant opens business to the general public whichever occurs first.

b. Tenant to have one (1) ten-year renewal option. Tenant will be deemed to have exercised its right to a respective renewal term unless Tenant serves written notice on the Landlord that the Lease term not be so extended on or before October 1, 2028.

3. **BUSINESS PURPOSE.** The premises are to be used for the purpose of: Trampoline Center. Landlord agrees to give tenant an exclusive to the shopping center for Family Entertainment Centers.

4. **RENT.** Tenant shall pay to the Landlord as "Rent" for the leased premises, on or before the first (1st) day of each calendar month in advance during the term hereof the following amounts:

	<u>Annual</u>	<u>Monthly</u>
Rent Amount (Rent Commencement Date to March 31, 2024)	\$174,999.96	\$14,583.33
Rent Amount (April 1, 2024 to March 31, 2029)	\$200,000.04	\$16,666.67
Option 1 (April 1, 2029 to March 31, 2039)	\$240,000.00	\$20,000.00

a. If any rents shall be unpaid when the same shall become due, in addition to all other remedies, Landlord may institute an action against the Tenant for damages including the full amount of all rents for the duration of the lease term minus any amounts received by Landlord pursuant to Landlord's reasonable mitigation efforts.

b. Any three payments received by Landlord 10 days late in a twelve (12) month period shall at the sole discretion of the Landlord, deemed a breach of this agreement.

Landlord

Tenant

Page 1 of 20

5. REPAIRS & MAINTENANCE. Tenant will at all times keep the premises neat, clean, and in a sanitary condition. Tenant will at all times preserve said premises in as good repair as they now are or may hereto be put, excepting only reasonable wear and tear. All repairs to interior portions of the Demised Premises shall be at Tenant's sole cost and expense. The interior portions of the Demised Premises shall include (without limitation) each of the following: (i) interior faces of the exterior walls, (ii) ceilings, (iii) floor coverings, (iv) nonstructural portions including doors, windows, window frames and plate glass, (v) heating, ventilating and air conditioning system (HVAC) and (vi) the electrical, plumbing and other systems. Tenant is to provide semi-annual preventative maintenance on HVAC by a professional licensed and insured HVAC contractor. Upon request from Landlord, Tenant shall provide Landlord with reasonable evidence that the aforesaid preventative maintenance contract is being maintained.

6. UTILITIES. The Tenant hereby covenants and agrees to pay all charges for natural gas, electricity, water, sanitary sewer, and solid waste disposal which shall be used in or charged against the Demised Premises during the full term of this lease, any option periods, and holdover periods. Landlord shall not be liable for the failure of any such service for any reason whatsoever, other than the negligence or willful misconduct of Landlord or its agents or representatives.

7. REAL ESTATE TAXES. Landlord shall pay all real property taxes which may be levied or assessed by any lawful authority against the land and improvements in the Shopping Center. Tenant shall pay to Landlord, starting on the Rent Commencement Date, its pro rata share of Real Estate Taxes paid by Landlord. Tenant's pro rata share of such Real Estate Taxes shall be the product obtained by multiplying said Real Estate Taxes by a fraction, the numerator of which shall be the Leased Square Footage of the Demised Premises and the denominator of which shall be the gross leasable area of the Shopping Center. Tenant agrees to pay a pro rata share of all real estate property taxes when billed. Said billing shall be sent to Tenant on a monthly basis. Initial amount due will be \$607.47 per month. Landlord will provide Tenant reconciled accounting no later than November 1 of each year.

8. INSURANCE

a. Tenant: Tenant agrees to carry at its own expense, throughout this Lease, commercial general liability insurance covering the Demised Premises and Tenant's use thereof which insurance shall include Landlord as an additional insured, with minimums of the following: One Million Dollars (\$1,000,000.00) each event combined single limit with a Two Million Dollar (\$2,000,000.00) general total combined single limit, and to provide Landlord with a certificate of insurance evidencing such coverage prior to the Tenant occupancy.

b. Landlord: Landlord shall at all times carry insurance covering all improvements located in the Shopping Center, including the Demised Premises, except for Tenant's trade fixtures, furnishings and inventory against perils normally covered under special form "All Risk" insurance in an amount not less than the full replacement value of all the improvements located in the Shopping Center, including the Demised Premises. Landlord shall provide Tenant with a certificate of insurance evidencing such coverage prior to the Rent Commencement Date. Landlord shall at all times carry commercial general liability insurance covering the Common Areas, which insurance shall include Tenant as an

Landlord AP Tenant AH WB Key Jry

additional insured, with minimum limits of the following: One Million Dollars (\$1,000,000.00) each event combined single limit with a Two Million Dollar (\$2,000,000.00) general total combined single limit, and shall provide Tenant with a certificate of insurance evidencing such coverage prior to the Rent Commencement Date. Notwithstanding anything contained in this Lease to the contrary, Landlord shall be solely responsible for any and all deductibles and/or self-insured retentions. Tenant shall abide by any requirements established by the insurance carrier.

c. Tenant shall, starting on the Rent Commencement Date, pay Tenant's pro rata share of the premiums paid by Landlord for maintaining the commercial general liability insurance and casualty insurance policies. Tenant's pro rata share of such Real Estate Taxes shall be the product obtained by multiplying said insurance premiums by a fraction, the numerator of which shall be the Leased Square Footage of the Demised Premises and the denominator of which shall be the gross leasable area of the Shopping Center. Tenant agrees to pay a pro rata share of all real estate property taxes when billed. Said billing shall be sent to Tenant on a monthly basis. Initial amount due will be \$437.50 per month. Landlord will provide Tenant reconciled accounting within 60 days of any insurance policy renewal.

9. SHOPPING CENTER. Landlord's "Shopping Center" which said description encompasses the area shown on Exhibit A, the address of which is 3501 E Lincolnway, Cheyenne WY 82001. Landlord represents that the gross leasable area of the Shopping Center as of the date of this Lease is 60,084 square feet. All square footages include interior and exterior walls.

10. COMMON AREAS

a. Throughout the term of this Lease, Landlord shall be responsible for the following:

- 1) Make all repairs and replacements necessary to keep the exterior and structural portions of the Shopping Center in good order
- 2) All papers, debris, filth and refuse shall be removed from the Shopping Center, and paved areas shall be washed or thoroughly swept as required.
- 3) All landscaping shall be properly maintained, including removal of dead plants, weeds and foreign matter, and such replanting and replacement as the occasion may require.
- 4) All hard-surfaced markings shall be inspected at regular intervals and promptly repainted as the same shall become unsightly or indistinct from wear and tear, or other cause.
- 5) All storm sewer catch basins shall be cleaned on a schedule sufficient to maintain all sewer lines in a free-flowing condition and all mechanical equipment related to storm sewer facilities shall be regularly inspected and kept in proper working order.
- 6) All asphalt paving shall be inspected at regular intervals and maintained in good condition.

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7) All common area amenities, benches, and institutional, directional, traffic and other signs shall be inspected at regular intervals, maintained in a clean and attractive surface condition and promptly repaired or replaced upon the occurrence of any defects or irregularities thereto.

8) The improvements on and to the common area shall be repaired or replaced with materials, apparatus and facilities repaired or replaced.

9) The common area shall be reasonably illuminated at least during such hours of darkness as any of the stores shall be open for business to the public, and for a reasonable period thereafter, in order to permit safe egress from the Shopping Center by permit-tees and shall also be illuminated during such hours of darkness and in such manner as will afford reasonable security for the Stores. All lamps shall be inspected at regular intervals and all lamps shall be promptly replaced when no longer properly functioning.

- b. Fixed Common Area Charges: Notwithstanding anything to the contrary contained herein, Tenant's pro rata share of Common Area Charges shall be fixed as shown below. Commencing on the Rent Commencement Date, such amount shall be paid to Landlord in equal monthly installments on the first day of each calendar month.

	<u>Monthly</u>
Rent Commencement Date to June 30, 2020	\$1,937.50
July 1, 2020 to June 30, 2021	\$1,985.94
July 1, 2021 to June 30, 2022	\$2,035.59
July 1, 2022 to June 30, 2023	\$2,086.48
July 1, 2023 to June 30, 2024	\$2,138.64
July 1, 2024 to June 30, 2025	\$2,192.10
July 1, 2025 to June 30, 2026	\$2,246.91
July 1, 2026 to June 30, 2027	\$2,303.08
July 1, 2027 to June 30, 2028	\$2,360.66
July 1, 2028 to March 31, 2029	\$2,419.67
Option Period 1 amount to increase by 2.5% on July 1st of each year.	

11. TENANT RESPONSIBILITIES

a. The Demises Premises shall be open for business, holidays excepted (but not prohibited), for at least forty (40) hours per week from and after the dates when they shall originally open for business to the general public.

b. All floor area, including vestibules, entrances and returns, doors, fixtures, windows and plate glass shall be maintained in a safe, neat and clean condition.

c. All trash, refuse and waste materials shall be regularly removed from the Demised Premises, and until removal shall be stored (a) in adequate containers, which such containers shall be located so as not to be visible to the general public shopping in the Shopping Center, and (b) so as not to constitute any health or fire hazard or nuisance to any occupant.

d. No portion shall be used for lodging purposes.

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e. Demised Premises to be used only for the Business Purpose outlined in Section 3 of this Lease. Any change in scope of the business amenities offered must be approved by the Landlord.

f. Neither sidewalks nor walkways shall be used to display, store or place any merchandise, equipment or devices.

g. No advertising medium shall be utilized which can be heard or experienced outside of the Leased Premises including, without Limiting the generality of the foregoing, flashing lights, searchlights, loud speakers, phonographs, radios or televisions.

h. No auction, fire bankruptcy or going-out-of-business sale shall be conducted in, at, on or about the Center or any portion of portions thereof.

i. No use shall be made of the Center or any portion or portions thereof which would (a) Violate any law, ordinance or regulations. (b) Constitute a nuisance. (c) Constitute an extra hazardous use or (d) Violate, suspend or void any policy or policies of insurance on the Shopping Center.

j. Tenant shall use its best efforts to cause all trucks servicing the Demised Premises to load and unload prior to the hours of the Center opening for business to the general public.

k. No person shall use any roadway or walkway, except as a means of egress from or ingress to any areas within the Shopping Center, or adjacent public streets. Such use shall be in an orderly manner, in accordance with the directional or other signs or guides. Roadways shall not be used for parking or stopping, except for the immediate loading or unloading of passengers. No walkways shall be used for other than pedestrian travel.

l. No person shall use any parking areas except for the parking of motor vehicles during the period of time such person or the occupants of such vehicles are customers or business invitees of the retail establishments within the Shopping Center. All motor vehicles shall be parked in an orderly manner within the painted lines defining the individual parking spaces. During peak period of business activity, limitations shall be imposed as to the length of time for parking use. Such limitations may be made in specified areas.

m. No person shall use any utility area or other area reserved for use in connection with the conduct of business except for the specific purpose for which permission to use such area is given.

n. If so marked, no employee of any business in the Shopping Center shall use any area for motor vehicle parking except the area or areas specifically designated for employee parking for the particular period of time such use is to be made. No employer shall designate any area for employee parking, except such area or areas as are designated in writing by Landlord.

o. Use any sound making device of any kind or create or produce in any manner noise or sound that is annoying, unpleasant, or distasteful.

Landlord GA Tenant AH WB Key Inc

p. The listing of specific items as being prohibited is not intended to be exclusive, but to indicate in general the manner in which the right to use the common area solely as a means of access and convenience in shopping' at the retail establishments in the Shopping Center is limited and controlled by the parties in the Shopping Center.

12. ALTERATIONS. Tenant shall not make any alterations, additions or improvements in said premises without the consent of Landlord, in writing first had and obtained (which consent shall not be unreasonable withheld), and all alterations, additions and improvements which shall be made, shall be at the sole cost and expense of Tenant, and shall become the property of the Landlord, and shall remain in and be surrendered with the premises as a part thereof at the termination of this Lease without disturbance, molestation or injury. If the Tenant shall perform work with the consent of the Landlords as aforesaid, Tenant agrees to comply with all laws, ordinances, rules and regulations of the City of Cheyenne or any other authorized public authority. The Tenant further agrees to save the Landlord free and harmless from damage, loss or expense arising out of the said work. Tenant agrees that Landlord has the right to make alterations to the premises which do not interfere with Tenant's business.

13. INDEMNIFICATION. Tenant, its successors and assigns, agrees to indemnify, defend and hold harmless Landlord from any liability for injury to or death of any person or damage to personal property of every kind and nature arising from or in connection with the use and occupancy of the Demised Premises caused by the negligent acts or omissions to act or willful misconduct of Tenant or Tenant's employees, contractors and agents, or by the failure of Tenant, or Tenant's employees, contractors and agents to fulfill Tenant's obligations hereunder. The provisions of this section shall survive termination of this Lease.

14. FIRE REBUILDING AND ALTERING

a. If the Demised Premises, any permanent additions or leasehold improvements thereto, and/or any buildings or other improvements located within the Shopping Center shall be damaged, destroyed, or rendered untenable, in whole or in part, by or as the result or consequence of fire or other casualty during the Term hereof, Landlord shall repair and restore the same to a condition substantially similar to the condition existing immediately prior to such casualty, but in compliance with all regulations by authority having jurisdiction as of the date of restoration. During any period of repair or casualty, the Rent, Real Estate Taxes, Insurance and Fixed Common Area Maintenance Charges herein provided for in this Lease shall abate entirely in case the whole premises are untenable or if Tenant determines in good faith it cannot economically conduct business from the undamaged portion of the Demised Premises. In the event of a casualty which damages only a portion of the Demised Premises and Tenant continues to operate in the remaining portion of the Demised Premises, Rent, Real Estate Taxes, Insurance and Fixed Common Area Maintenance Charges shall be reduced based on the square footage of the Demised Premises which is not used by Tenant. Said abatement shall cease when the Demised Premises are restored to tenantable condition.

b. In the event the Demised Premises or a substantial portion of the Shopping Center, because of such damage or destruction, are not repaired and restored to tenantable condition within ninety (90) days from the date of such casualty, Tenant may, at its option, terminate

Landlord AA Tenant AA WB Ry Jy

this Lease by giving sixty (60) days prior written notice to Landlord and thereupon Tenant shall be released from all future liability and obligations under this Lease.

c. If the Demised Premises are damaged or destroyed during the last six (6) months of the Original Term or any Option Periods or extensions of this Lease, to the extent of more than one-third (1/3) of the ground floor area thereof, Landlord or Tenant shall have the right to terminate this Lease by written notice to the other party given within sixty (60) days following such casualty, provided, however, that Tenant may vitiate a termination by Landlord if Tenant elects to exercise its next option to extend the Term of the Lease.

15. LIENS AND INSOLVENCY. Tenant shall keep the leased premises and property in which the leased premises are situated, free from any liens arising out of any work performed, materials furnished, or obligations incurred by Tenant. In the event Tenant becomes insolvent, voluntarily or involuntarily bankrupt, or is judicially declared incompetent, or if a receiver, assignee or other liquidating officer is appointed for the business of the Tenant, then the Landlord may cancel this Lease at Landlord's option.

16. DEPOSIT AND DAMAGES.

a. Termination of this Lease by Landlord for breach of any terms or condition hereof by Tenant shall not discharge any obligation due to Landlord for rent or damages hereunder. Any deposit held by or in trust for Landlord as security for the fulfillment of the terms of this Lease by Tenant May, at Landlord's option, be applied on the last maturing rental installments hereunder, if this Lease is performed to the end of its terms. But in case of prior termination by Landlord for default of Tenant, such deposit May be retained by Landlord as liquidated damages, for Tenant's breach hereof: without affecting any obligation then due from Tenant under the terms of this Lease.

b. Any balance due to be refunded, if this Lease is performed to the end of its terms, will be sent to Tenant within 90 days of termination with a full accounting. Tenant will provide mailing address to Landlord by the termination date.

c. Landlord acknowledges that Tenant has paid a deposit in the amount of \$17,565.80.

d. Landlord acknowledges that Tenant has paid \$17,565.80 for first month's rent, CAM, and estimated taxes and insurance.

e. Landlord acknowledges that Tenant has paid \$17,565.80 which will be applied to Tenant's last month's rent and expenses.

f. The entire amount described in sections 16c, 16d, and 16e (\$52,697.40) will be fully refunded to Tenant if this lease is cancelled due to Tenant not receiving financing as outlined in section 33 of this Lease.

17. COMMON TENANCY. If the premises Leased herein includes any part of the building in common use by other tenants of the same building, then Tenant agrees to conform to all reasonable rules and regulations that may be adopted by the Landlord pertaining to such portions of the building in common use. Said rules and regulations may include adoption of reasonable

Landlord [Signature] Tenant AH WB Key Ly

parking allocations and specification of areas so designated as customers only, employees, delivery vehicles, etc.

18. ASSIGNMENT. Tenant shall not let or sublet the whole or any part thereof nor assign this Lease or any part thereof without the written consent of the Landlord, or Landlord's agents, which consent shall not be unreasonably withheld. This Lease shall not be assignable by operation of law. If Tenant is a corporation then any transfer of this Lease from Tenant by merger, consolidation, or liquidation, and any change in ownership of, or power to vote, the majority of its outstanding voting stock shall constitute an assignment for the purposes of the Paragraph. In the event of any assignment so consented to, a change of fifty percent (50%) of one month's rent shall be made by Landlord in addition to required attorney's fees for their services in transferring or assigning this Lease, and shall be paid by Tenant. Consent to one assignment of his Lease, or interest therein, shall not be deemed consent to any further assignment. Tenant shall not sub-lease nor assign unless they are in full compliance with all provisions of this agreement. Without specific authorization from Landlord, Tenant May not exercise an option to renew this Lease agreement unless Tenant intends to so occupy same. Landlord to agree to assignment if Tenant's company is being sold as a whole to anyone that has equal or greater net worth than Tenant, at the time of this lease.

19. ACCESS. Tenant will allow Landlord or Landlord's agents free access at all reasonable times to said premises for the purpose of inspection or making repairs, additions, or alterations to the premises or any property owned by or under the control of Landlord but this right shall not be construed as an agreement on the part of the Landlord to make any repairs, all or such repairs to be made by Tenant as aforesaid. The Landlord shall have the right to place and maintain "For Rent" signs in a conspicuous place on said premises for ninety (90) days prior to the expiration of this Lease. Signs will not be placed for the purpose of gaining an advantage to renew or renegotiate this Lease.

20. SIGNS. No sign shall be placed on the premises, including marquees and window signs, permanent or temporary, without the express written permission of the Landlord. Landlord is to also approve design, color and construction. All such signs shall so conform to ordinances of local governing agencies. Any signs or marquees so placed on the will be at the sole cost of the Tenant and shall be so placed with the understanding and agreement that Tenant will remove same at the termination of the tenancy herein created and repair any damage or injury to the premises caused thereby, and if not so removed by Tenant the Landlord may have same so removed at Tenant's expense.

21. DEFAULT AND RE-ENTRY. If any rents above reserved, or any part thereof, shall remain unpaid when the same shall become due or if Tenant shall violate or default in any of the covenants and agreements herein contained, and if such nonpayment or default shall continue for more than (10) days following written notice to Tenant, the Landlord may cancel this Lease upon giving the notice required by law and re-enter said premises, but notwithstanding such re-entry by the Landlord, the liability of the Tenant for the rent and other amounts provided for herein shall not be extinguished for the balance of the term of this Lease and Tenant covenants and agrees to for the balance of the term of this Lease, and Tenant covenants and agrees to make good to the Landlord any deficiency arising from the re-entry and re-letting of the premises at the

Landlord AA Tenant AA WB by Ky

lesser rental than herein agreed to. The Tenant shall pay such deficiency each month as the amount thereof is ascertained by the Landlord.

22. COSTS AND ATTORNEY'S FEES. If by reason of any material default on the part of the Tenant it becomes necessary for the Landlord to employ an attorney or in case Landlord shall bring suit to recover any rents due hereunder, or for breach of any provision of this Lease or to recover possession of the leased premises; or if Tenant shall bring any action for any relief against Landlord, declaratory or otherwise, arising out of this Lease, the prevailing party will be entitled to a reasonable attorney's fee and all costs and expenses expended or incurred by the Landlord/Tenant in connection with such default or action. Any such action shall be commenced and maintained in Laramie County, Wyoming regardless of Tenant's or Landlord's residence or place of business.

23. NON WAIVER OF BREACH. The failure of the Landlord to insist upon strict performance of any of the covenants and agreements of this Lease, or to exercise any option herein conferred in anyone or more instances, shall not be construed to be waiver or relinquishment of any such, or any other covenants or agreements, but the same shall be and remain in full force and effect.

24. REMOVAL OF PROPERTY. In the event of any entry in, or taking possession of, the leased premises as aforesaid, the Landlord shall have the right, but not the obligation, to remove from the leased premises all personal property located therein, and may store the same in any place selected by Landlord, including but not limited to a public warehouse, at the expense and risk of the owners thereof, with the right to sell such stored property, without notice to Tenant, after it has been stored for a period of thirty (30) days or more, the proceeds of such sale to be applied first to the cost of such sale, second to the payment of the charges for storage, if any, and third to the payment of any other sums of money which may then be due from Tenant to Landlord under any of the terms hereof, the balance, if any, to be paid to Tenant.

25. HEIRS AND SUCCESSORS. Subject to the provisions herein pertaining to assignment and subletting, the covenants and agreements of this Lease shall be binding upon the heirs, legal representatives, successors, and assigns of any or all of the parties thereto.

26. HOLD-OVER. If the Tenant shall, with the written consent of Landlord, hold over after the expiration of the term of this Lease, such tenancy, which tenancy shall be terminated as provided by the laws of the State of Wyoming. During such tenancy Tenant agrees to pay to the Landlord the same rate rental as set forth herein, unless a different rate is agreed upon, and to be bound by all the terms, covenants and conditions as herein specified, so far as applicable. Tenant agrees that at the expiration or sooner termination of this Lease, Tenant will quit and surrender the said premises in a broom clean condition, and deliver up all keys belonging to said premises to the Landlord or Landlord's agents.

27. EMINENT DOMAIN. In the event any part of the property in which the leased premises are contained is taken by public authority, then Tenant may cancel this Lease. Tenant may claim damages from any such public authority for loss of business, relocation expenses, and damages relating to the value or amount by which the remaining terms of the lease is an asset because of the current rental rates in effect at the time of the taking. Tenant will substantiate his loss to Landlord by showing records which demonstrate a greater than 10% loss of business during the

Landlord AD Tenant AH W3 Key Ly

ninety (90) days subsequent to the taking as compared with the same period of the previous year. Notice of such proposed termination shall be given at least sixty (60) days prior to termination, but such 60 days shall be included in the ninety (90) day evaluation period. Rent will not be abated during this period.

28. TIME OF THE ESSENCE. Time is hereby declared to be of the essence of each and every provision hereof, and no waiver of any breach thereof, or this covenant as to time.

29. MORTGAGES-SUBORDINATION. This Lease shall at all times be subject and subordinate to the lien of any mortgage (including, for purposes hereof, any Deed of Trust) that shall be placed on the premises by Landlord. Tenant shall execute, acknowledge and deliver any instruments that may be requested by Landlord or Landlord's mortgage from time to time to evidence such subordination of record, if Landlord shall obtain and deliver to Tenant before Tenant is required to execute any such instrument, a written agreement from any such mortgage, in form satisfactory to Tenant, stating in substance that: (a) as long as Tenant faithfully discharges each and every obligation on Tenant's part to be performed hereunder, Tenant's tenancy will be recognized and not be disturbed nor this lease be affected by default or foreclosure under said mortgage, and (b) in the event of foreclosure or other enforcement of said mortgage, the rights of Tenant shall survive and this lease shall in all respects continue in full force and effect if Tenant continues to fully perform all of Tenant's obligations hereunder. Tenant shall have the right to acquire the premises in the event of any such foreclosure. In the event of any default under such mortgage or mortgages; Landlord agrees that Tenant may cure such default and deduct any advances made for the purpose from future rent to be paid to Landlord.

30. OTHER PROVISIONS. Tenant's tenancy will be recognized and not be disturbed nor this lease be affected by the sale of this property to another third party. The rights of Tenant shall survive and this lease shall in all respects continue in full force and effect if Tenant continues to fully perform all of Tenant's obligations hereunder.

31. QUIET ENJOYMENT. Landlord warrants that Tenant shall have and enjoy, during the term hereof quiet and undisturbed possession of the demised premises; temporary disorder or interruption of ingress and egress by city, county, or acts of God or catastrophe excepted.

32. INITIAL BUILD OUT

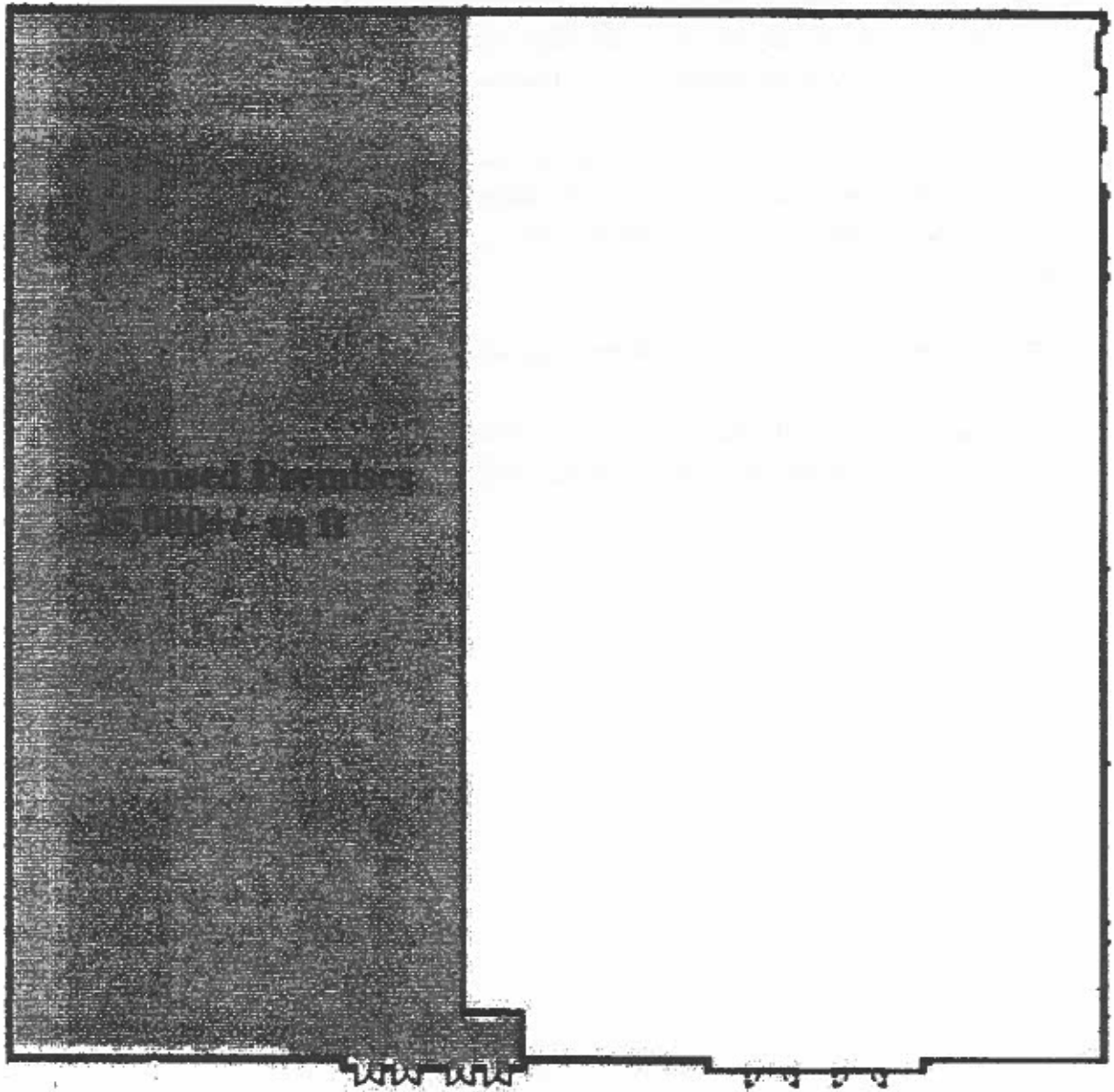
- a. Landlord shall complete Landlord Improvements (Exhibit B) at Landlord's sole expense.
- b. Tenant shall complete all other improvements at Tenant's sole expense. All improvements/changes to the space must be approved by Landlord prior to work commencing. Such approval will not be unreasonably withheld. Tenant will be responsible for obtaining all necessary permits and regulatory approvals for Tenant improvements. Landlord shall pay Tenant \$87,500 to cover a portion of the Tenant improvements. Amount shall be paid in full on Rent Commencement Date.

33. LEASE CONTINGENCY. This agreement is subject to Tenant receiving financing in the amount of \$1,000,000 from Midwest Regional Bank by March 24, 2019.

Landlord DA Tenant AA WB Ky Ly

Exhibit A

"Demised Premises" shown in yellow
LINCOLNWAY SHOPPING CENTER ADDITION, 3RD FILING: LOT 3, BLOCK 1
3501 East Lincolnway, Cheyenne WY 82001



Landlord JA Tenant AW WB Reg Sry

Exhibit B

Landlord Improvements

Demising Wall. Landlord to erect demising wall separating the Demised Premises from the adjacent space.

Utilities. Landlord to provide separate utilities and separate utility meters with service direct from the local distribution company including natural gas, electric, and water. All electrical equipment to be located within the Demised Premises and connected to all HVAC equipment.

Demolition. Landlord to remove drop ceiling and equipment above to allow a minimum clear height of 20'' in the portion of the building with the higher exterior sidewall and 15'' in the portion of the building with the lower exterior sidewall. HVAC ducting to be removed and replaced with single diffuser for each HVAC unit.

Walls. Landlord to provide walls in paint ready condition.

Rest Rooms. Landlord to provide Tenant with two restrooms to Tenants' specifications. All specifications to be provided and agreed upon by Tenant and Landlord prior to March 24, 2019.

Landlord AA Tenant AA WB Ky Inf

Tenant: Frontier Trampoline Park Inc:

By:

James Yates, Owner

Date

2/22/19

Tenant Acknowledgement

Laramie County

)

) SS:

State of Wyoming

)

This Lease was acknowledged before me on the 22 day of February 2019, by James Yates in his capacity as Owner of Frontier Trampoline Park Inc.

Megan Mordahl

Notary Public

(seal)



Tenant: Frontier Trampoline Park Inc:

By:

Kat Yates, Owner

Date

2-22-19

Tenant Acknowledgement

Laramie County

)

) SS:

State of Wyoming

)

This Lease was acknowledged before me on the 22 day of February 2019, by Kat Yates in her capacity as Owner of Frontier Trampoline Park Inc.

Megan Mordahl

Notary Public

(seal)



Landlord

AN

Tenant

AN

WB

Ky

by

Tenant: Frontier Trampoline Park Inc:

By: Wyatt Bodray
Wyatt Bodray, Owner

2-22-19
Date

Tenant Acknowledgement

Laramie County)
) SS:
State of Wyoming)

This Lease was acknowledged before me on the 22 day of February 2019, by Wyatt Bodray in his capacity as Owner of Frontier Trampoline Park Inc.

Megan Mordahl
Notary Public

(seal)



Tenant: Frontier Trampoline Park Inc:

By: Ashley Hodge
Ashley Hodge, Owner

2-22-19
Date

Tenant Acknowledgement

Laramie County)
) SS:
State of Wyoming)

This Lease was acknowledged before me on the 22 day of February 2019, by Ashley Hodge in her capacity as Owner of Frontier Trampoline Park Inc.

Megan Mordahl
Notary Public

(seal)



Landlord AW Tenant AW WB KJ Lf

Landlord: Capital City Properties, LLC

By:

Joe W. Anderson Trustee

Joe W. Anderson, Trustee

Joe W. Anderson Living Trust, Member

22 Feb 19

Date

Landlord Acknowledgement

Laramie County

)

) SS:

State of Wyoming

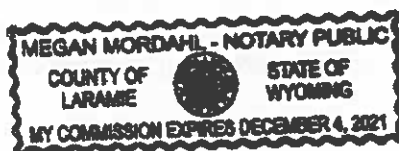
)

This Lease was acknowledged before me on the 22 day of February 2019 by Joe W. Anderson in his capacity as Trustee of Joe W Anderson Living Trust, which is the Sole Member of Capital City Properties, LLC.

Megan Mordahl

Notary Public

(seal)



Landlord

AA

Tenant

AA WB 1207 Jay

34. EXECUTION OF MULTIPLE COUNTERPARTS. This Lease may be executed in multiple counterparts, each of which shall constitute an original and all of which taken together shall constitute one and the same agreement binding upon the parties, notwithstanding that all the parties are not signatories to the same counterpart. In order to facilitate the agreements contemplated by this Lease, signatures transmitted by facsimile machine or signatures transmitted via e-mail in a "PDF" format may be used in place of original signatures on this Lease. Each party intends to be bound by such party's facsimile or "PDF" format signature on this Lease, is aware that the other parties are relying on such party's facsimile or "PDF" format signature, and hereby waives any defenses to the enforcement of this Lease based upon the form of signature. Promptly following any facsimile transmittal or e-mail transmittal of "PDF" format signatures, the parties shall deliver to the other parties the original executed Lease.

35. NOTICES. Whenever any demand, request, approval, consent or notice ("notice") shall or may be given by one party to the other, notice shall be addressed to the parties at their respective addresses as specified in the opening paragraph of this Lease and delivered by (i) a nationally recognized overnight express courier, or (ii) registered or certified mail return receipt requested, or (iii) via facsimile or email, provided a copy of said notice is sent in accordance with (i) or (ii), within two (2) business days following facsimile or email transmission. The date of actual receipt shall be deemed the date of service of notice. In the event an addressee refuses to accept delivery, however, then notice shall be deemed to have been served on the date of said refusal of delivery. Either party may, at any time, change its notice address by giving the other party notice, in accordance with the above, stating the change and setting forth the new address.

36. LEGALITY. Should any one or more of the clauses of this Lease be declared void or in violation of the law, this Lease shall remain in effect, exclusive of such clause or clauses, to the fullest extent of the law. The terms of this Lease shall be interpreted under the substantive laws of the State of Wyoming. Landlord represents it is a limited liability company duly organized, validly existing and in good standing under the laws of Wyoming. Tenant represents it is a corporation duly organized, validly existing and in good standing under the laws of Wyoming.

37. ENTIRE AGREEMENT. Both parties acknowledge that no representation or condition or agreements varying or adding to this Lease have been made either orally or in writing and further that no modification, addition or change shall be made or shall be effective unless reduced to writing and executed by both parties.

This Lease shall bind the parties only upon the full execution by both parties and each party's receipt of an original of this Lease signed by the other party. If either party fails to execute this Lease and deliver an executed original to the other party within fifteen (15) days of the Lease Effective Date, this Lease shall be null and void at the option of either party.

Landlord



Tenant

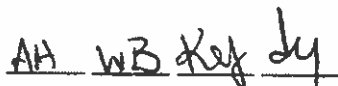


Exhibit C-1

GUARANTEE

The undersigned hereby unconditionally and irrevocably guarantees to Landlord, and its successors and assigns, the due and punctual payment of rent and other amounts due, and the performance of all covenants, conditions and agreements to be paid or performed by Tenant in or under the foregoing Lease.

The undersigned expressly waives any demand for performance upon Tenant and any notice to the undersigned of non-payment or non-performance by Tenant and hereby waive all suretyship defenses. The undersigned further consents to any indulgences granted or allowed to Tenant including but not limited to granting of extensions of times for payment or taking of any notes or other obligations or any security for payment of sums due or to become due, without notice to undersigned and without thereby in any manner releasing or affecting the liability of the undersigned.

The Guaranty is for the entire term of the lease and any exercised option periods.

Dated: 2-22, 2019

GUARANTOR

Wyatt Bodray
Wyatt Bodray

Landlord CH Tenant AH WB Key dy

Exhibit C-2

GUARANTEE

The undersigned hereby unconditionally and irrevocably guarantees to Landlord, and its successors and assigns, the due and punctual payment of rent and other amounts due, and the performance of all covenants, conditions and agreements to be paid or performed by Tenant in or under the foregoing Lease.

The undersigned expressly waives any demand for performance upon Tenant and any notice to the undersigned of non-payment or non-performance by Tenant and hereby waive all suretyship defenses. The undersigned further consents to any indulgences granted or allowed to Tenant including but not limited to granting of extensions of times for payment or taking of any notes or other obligations or any security for payment of sums due or to become due, without notice to undersigned and without thereby in any manner releasing or affecting the liability of the undersigned,

The Guaranty is for the entire term of the lease and any exercised option periods.

Dated: 2-22, 2019

GUARANTOR

Ashley Hodge
Ashley Hodge

Landlord AA Tenant AH WB Ky Juy

Exhibit C-3

GUARANTEE

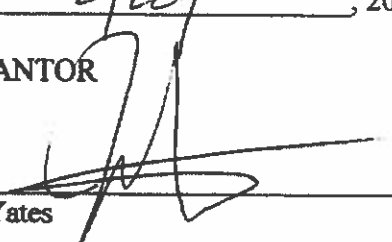
The undersigned hereby unconditionally and irrevocably guarantees to Landlord, and its successors and assigns, the due and punctual payment of rent and other amounts due, and the performance of all covenants, conditions and agreements to be paid or performed by Tenant in or under the foregoing Lease.

The undersigned expressly waives any demand for performance upon Tenant and any notice to the undersigned of non-payment or non-performance by Tenant and hereby waive all suretyship defenses. The undersigned further consents to any indulgences granted or allowed to Tenant including but not limited to granting of extensions of times for payment or taking of any notes or other obligations or any security for payment of sums due or to become due, without notice to undersigned and without thereby in any manner releasing or affecting the liability of the undersigned,

The Guaranty is for the entire term of the lease and any exercised option periods.

Dated: 2/22, 2019

GUARANTOR


James Yates

Landlord 

Tenant

AH

WB

Key

by

Exhibit C-4

GUARANTEE

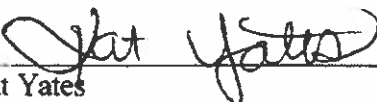
The undersigned hereby unconditionally and irrevocably guarantees to Landlord, and its successors and assigns, the due and punctual payment of rent and other amounts due, and the performance of all covenants, conditions and agreements to be paid or performed by Tenant in or under the foregoing Lease.

The undersigned expressly waives any demand for performance upon Tenant and any notice to the undersigned of non-payment or non-performance by Tenant and hereby waive all suretyship defenses. The undersigned further consents to any indulgences granted or allowed to Tenant including but not limited to granting of extensions of times for payment or taking of any notes or other obligations or any security for payment of sums due or to become due, without notice to undersigned and without thereby in any manner releasing or affecting the liability of the undersigned,

The Guaranty is for the entire term of the lease and any exercised option periods.

Dated: 2-22, 2019

GUARANTOR


Kat Yates

Landlord AN Tenant AA WB Ky Lm

LESSOR'S CONSENT & AGREEMENT

Lender: Midwest Regional Bank
363 Festus Centre Drive
Festus, MO 63028

Borrower (Lessee): Frontier Trampoline Park Inc

Lessor: Capital City Properties LLC

Lease Dated: February 22, 2019

Premises: 3501 E Lincolnway, Cheyenne WY

Lessor certifies to the Lender as follows:

1. Lessor has executed a lease agreement with Borrower/Lessee dated Feb 22, 19 for certain premises located at 3501 E Lincolnway, Cheyenne WY (hereafter "Lease").
2. Lessor states that Borrower is not in default of any of the terms of the Lease.
3. In order to induce Lender to provide Borrower with a loan or other credit facilities, Lessor hereby subordinates, as to Lender, any and all liens, including distraint and levy, that Lessor may have in or against the following property of Borrower, whether now owned or hereafter acquired, all: (a) Equipment; (b) Fixtures; (c) Inventory; (d) Accounts; (e) Instruments; (f) Chattel Paper; and (g) General Intangibles (hereafter collectively "**Secured Property**"). As a result, Lender's security interest in the Secured Property is and shall be prior and superior to any rights that Lessor may have in the Secured Property.
4. Lessor has not previously subordinated its interest in the Secured Property to any other lender or any other party.
5. Lessor has no knowledge of any other party that has an interest or lien in the Secured Property.
6. Lessor agrees that in the event of any default by Tenant under the terms of the Lease, Lessor will not terminate the lease without first giving Lender a sixty (60) day written notice by certified mail ("**Default Notice Period**") of such action at the above address. Lender shall have the right, but not the obligation, to cure such default within thirty (30) days of receipt of the Default Notice ("**Lender Cure Period**"), notwithstanding any applicable cure period provided to Tenant under the Lease.
7. Lessor shall grant access to the Premises to Lender, during the Default Notice

Period, to allow Lender to remove any of the Secured Property. Lender shall repair any damage Lender, or its agents, cause to the Premises during the removal of any of the Secured Property. Lender shall remove all such Secured Property from the Premises within the Default Notice Period. Notwithstanding the foregoing, if Borrower/Lessee retains possession of the Premises and withholds consent to Lender's removal of the Secured Property during the Default Notice Period, then within sixty (60) days after Lender receives written notice from Lessor of Lessor's repossession of the Premises ("**Repossession Notice**"), Lender shall remove the Secured Property from the Premises ("**Removal Notice Period**").

8. Lessor consents to Borrower's collateral assignment of the Lease to Lender.

9. Lessor certifies that the undersigned has full authority to execute this agreement.

Lessor:

Date: Feb 22, 19

Signed: 

By (Print): Joe W. Anderson

Title: Sole Member

AGREEMENT FOR THE SALE OF ALCOHOL ON LEASED PREMISES

This Agreement is made on the [Date], by and between Capital City Properties LLC, a Wyoming Limited Liability Company ("Landlord") and Frontier Trampoline Park Inc, a Wyoming Corporation ("Tenant"), concerning the premises located at 3501 East Lincolnway Suite B, Cheyenne WY 82001 ("Premises").

WHEREAS,

- The Landlord is the owner of the Premises.
- The Tenant is leasing the Premises under a lease agreement dated February 22, 2019, hereinafter referred to as "the Lease".
- The Tenant wishes to sell alcoholic beverages at the Premises for commercial purposes.

NOW, THEREFORE, in consideration of the mutual covenants contained herein, the parties agree as follows:

1. Permission to Sell Alcohol:

- The Landlord hereby grants the Tenant permission to sell alcoholic beverages on the Premises in compliance with all applicable federal, state, and local laws, regulations, and ordinances related to the sale of alcohol.

2. Compliance with Laws:

- The Tenant agrees to obtain and maintain all necessary licenses and permits required for the sale of alcohol and will comply with all legal obligations associated with such sales. The Tenant shall promptly provide copies of all such licenses to the Landlord upon request.

3. Insurance:

- The Tenant shall maintain adequate liability insurance that includes coverage for the sale of alcohol. The policy shall name the Landlord as an additional insured. Proof of such insurance shall be provided to the Landlord annually or upon renewal.

4. Indemnification:

- Tenant hereby agrees to indemnify, defend, and hold harmless the Landlord, its agents, employees, and successors from and against any and all claims, actions, damages, liabilities, costs, or expenses (including reasonable attorneys' fees) which may arise from, or relate to, the sale of alcohol by the Tenant on the Premises. This
-

indemnification includes, but is not limited to, any incidents of alcohol-related injury, property damage, or legal issues.

5. Termination of Permission:

- The Landlord may revoke this permission at any time with written notice if the Tenant fails to comply with any term of this Agreement or the Lease, or if there is any substantial breach of law by the Tenant related to the sale of alcohol.

6. Survival:

- The indemnification clause shall survive the termination or expiration of this Agreement or the Lease.

7. Miscellaneous:

- This Agreement is subject to the terms of the Lease unless otherwise specified herein. Any changes to this Agreement must be in writing and signed by both parties.

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the day and year first written.

Capital City Properties LLC:

 Trustee
Joe W. Anderson, Trustee
Joe W. Anderson Living Trust, Member

2/10/25
Date

Frontier Trampoline Park Inc:


Wyatt Bodray, Owner

2/11/25
Date


Ashley Hodge, Owner

2/11/25
Date

Issued by:

**WYOMING DEPARTMENT OF AGRICULTURE
CONSUMER HEALTH SERVICES**

**2219 CAREY AVE
CHEYENNE, WY 82002**

EQUAL OPPORTUNITY IN EMPLOYMENT AND SERVICES

Retail Food

ACCOUNT # 9982

Whereas this party has made application for the licenses listed below in the State of Wyoming according to the law and agrees to comply with all laws, rules and regulations thereto, including the payment of all required fees, there is hereby issued to the applicant this license. This license is not transferable and, unless revoked, shall expire on the date indicated below.

Issued to:

EXPIRATION DATE: 2/6/2026

**FRONTIER TRAMPOLINE PARK
3501 E. LINCOLNWAY ST B
CHEYENNE, WY 82009**

**FRONTIER TRAMPOLINE PARK
FRONTIER TRAMPOLINE PARK
3501 E LINCOLNWAY STE B
CHEYENNE, WY 82001**

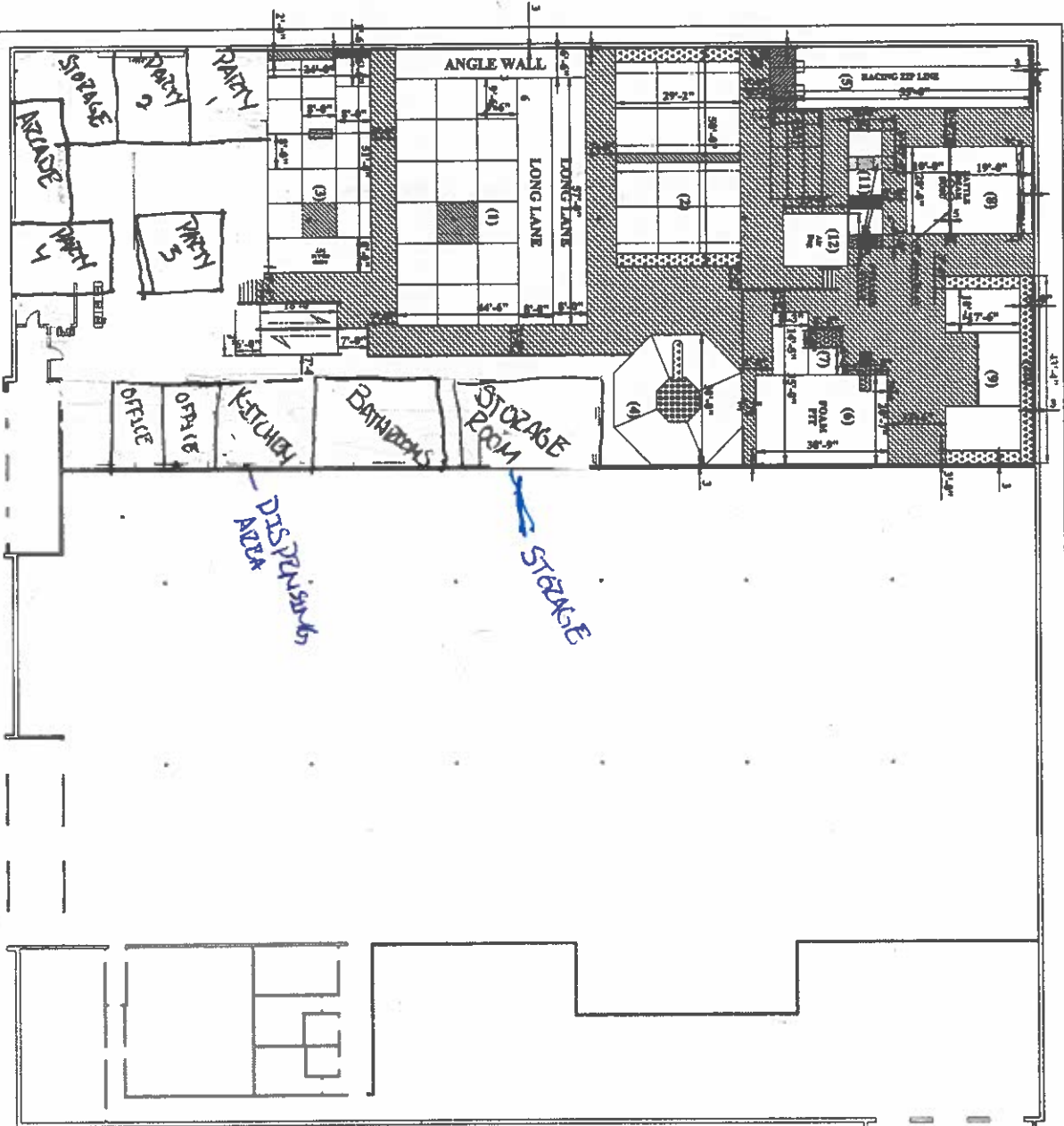
Dan L. Mignard

Director of Dept. of Ag

**THIS LICENSE MUST BE CURRENT
AND POSTED CONSPICUOUSLY
AT THE PHYSICAL LOCATION**

Dispensing Area:

The dispensing area is in the café, the southwest area of the establishment, approximately 350sqft.



	35.8875"
	61.8875"
	61.1875"
	99.1875"
	67.1875"
	122.1875"
	146.1875"
	87.1875"
	111.1875"
	135.1875"

By Fun Spot		
Total area of trampolines		
1 Main court	2559	Sq. Ft.
2 Xtreme Dodge Ball	1568	Sq. Ft.
3 Kids Court	1281	Sq. Ft.
4 Wipeout	748	Sq. Ft.
5 Raging Zipline	854	Sq. Ft.
6 Foam Pit	833	Sq. Ft.
7 Foam Pit Entrance	217	Sq. Ft.
8 Boulder wall/Settle Beam	568	Sq. Ft.
9 Performance Tramp	534	Sq. Ft.
10 Performance Wall	235	Sq. Ft.
11 Airway Tramp	216	Sq. Ft.
12 Air Bgg	180	Sq. Ft.
13 Warped Wall (10' x 12')	1	Sq. Ft.
Total area of 35.0875' (Green)	2783	Sq. Ft.
Raised Floor	2307	Sq. Ft.
Total area of 81.0875'	289	Sq. Ft.
(Pink) Raised Floor	289	Sq. Ft.
Total Area of Ramp	2	Sq. Ft.
Total Slabs	308	Sq. Ft.
Total length of handrails	1740	ft.
Design requires clearance of 5.2m (17.4') over normal Trampoline courts, 5.6m (19.4') over foam pits and 7m (23.4') over performance area. Alert us now of height deficiency.		
Normal installation requires reasonably flat concrete floor of 10cm (4") thickness, with no embedded heating system.		
Customer is responsible for providing accurate building dimensions.		
System design assumes construction of raised floor and other adjoining structures occurs after trampoline installation.		
Design requires clearance of 18' for trapeze bar, 23' for trapeze/zip line combo, 22' for Raging Combo, 24' for rope course.		
ALL HEIGHTS ARE MEASURED A.F.F		



FUN SPOT MANUFACTURING LLC.			
Client Name:		Ceiling Height: 14' 6" or from front then 22' 10" the end	
Park Name: Frontier TP			
Park Location:			

Signature:
Date:

Layout: TRAMPOLINE LAYOUT			
	Name	Date	Scale: 1:500
Drawn:	Rishabh	3/11/2018	Sheet #: 1 of 1
Checked:	MATT		REV. 14

Liquor sales plan, Policies, and Procedures

Proposed site of business:

Pre-packaged canned Items will be sold in our café area located to the west inside the building.

Products & Purchasing:

We are only going to be selling pre-packaged canned beverages. We will not be making mixed drinks. We plan on purchasing from a reliable vendor, Bison Beverage.

Staff and Training:

We will have staff 21+ always scheduled in the café area during our open hours to sell beverages. These staff members will also go through the TIPS training course and have company policy training as well before they are scheduled to sell in the café. We have purchased Tips passports already (see doc included) and 2 members of our staff have finished the TIPS training already. We will follow all state and local guidelines under the TIPS training information regarding I.D checks and we will also be giving a colored wrist band to individuals purchasing alcoholic beverages.

Storage:

Storage of the stocked beverages will be in our drink closet that contains a locked door at all times and no one under 21 will be able to access it. Purchased beverages will be dispensed in the café the west side of the building in a designated cooler.

Incident Reporting:

We currently track all incidents that happen within the establishment, and we will add the alcohol related incidents to that same form for proper documentation.

STATE OF WYOMING
Office of the Secretary of State

I, EDWARD A. BUCHANAN, Secretary of State of the State of Wyoming, do hereby certify that the filing requirements for the issuance of this certificate have been fulfilled.

CERTIFICATE OF INCORPORATION

Frontier Trampoline Park

I have affixed hereto the Great Seal of the State of Wyoming and duly executed this official certificate at Cheyenne, Wyoming on this **27th** day of **September, 2018** at **8:29 PM**.

Remainder intentionally left blank.



Filed Date: 09/27/2018


Secretary of State

Filed Online By:
James Anthony Yates
on 09/27/2018



A 360TRAINING COMPANY

CERTIFICATE OF COMPLETION

This certifies that

Micayla Whitfield

is awarded this certificate for

TIPS Wyoming On-Premise Alcohol Server Training



Hours
4.00



Completion Date
01/02/2025



Expiration Date
01/02/2028



Certificate #
WY-ON-000035742775

Official Signature

THIS CERTIFICATE IS NON-TRANSFERABLE

6504 Bridge Point Parkway, Suite 100 | Austin, TX 78730 | www.360training.com

(CUT HERE)

(CUT HERE)



WY On-Premise

CERTIFIED

Issued: 01/02/2025

Expires: 01/02/2028

Certificate #: WY-ON-000035742775

Micayla Whitfield

3501 E. Lincolnway, Suite B

Cheyenne

WY 82001



Phone: 800-438-8477

www.gettips.com

This card was issued for successful completion of the TIPS program.

Signature



A 360TRAINING COMPANY

CERTIFICATE OF COMPLETION

This certifies that

Ashley Hodge

is awarded this certificate for

TIPS Wyoming On-Premise Alcohol Server Training



Hours
4.00



Completion Date
01/04/2025



Expiration Date
01/04/2028



Certificate #
WY-ON-000035762751

TRAINING™

[Signature]

Official Signature

THIS CERTIFICATE IS NON-TRANSFERABLE

6504 Bridge Point Parkway, Suite 100 | Austin, TX 78730 | www.360training.com

(CUT HERE)

(CUT HERE)



WY On-Premise

CERTIFIED

Issued: 01/04/2025

Expires: 01/04/2028

Certificate #: WY-ON-000035762751

Ashley Hodge

3501 East Lincolnway Suite B, Cheyenne, WY, USA
Cheyenne WY 82001



Phone: 800-438-8477

www.gettips.com

This card was issued for successful completion of the TIPS program.

Signature _____

GALACTIC EATS & TREATS



GRAB A BITE AT THE SPACESHIP CAFE

Whether fueling up or cooling down, we've got the hot eats and cool treats made you're looking for—and arguably the best pizza in the entire galaxy.

- Pizza by the pie or slice
- Candy
- Freeze Dried Candies

HUNGRY FOR MORE?

We are always doing special events—from PTO nights, to Space Camp, to our annual Car Show, Sensory Jumps, and more—be sure to check out our Facebook page to stay in the loop!



[Facebook.com/FTPCheyenne](https://www.facebook.com/FTPCheyenne)